

obligations *not* arising from a contract. (Civil Code, § 3294, subd. (a).) Since the basis of the present case is breach of the contract for sale of the vehicle, punitive damages are not available.

Also, even assuming that plaintiff can recover punitive damages here, it has not provided any evidence, authorities, or argument that would support its request for punitive damages of three times the amount of actual damages. The request for over \$105,000 in punitive damages based on a breach of contract claim that resulted in actual damages of about \$35,000 appears on its face to be excessive, even though defendant made misrepresentations when he entered into the sales contract. Therefore, the court will not grant the request for over \$105,000 in punitive damages.

In addition, plaintiff has miscalculated the requested interest. Plaintiff seeks over \$21,000 in prejudgment interest based on the contract price of \$62,470. However, plaintiff admits that its actual damages are \$35,014.73, not \$62,470. Therefore, interest should be calculated based on the actual damages of \$35,014.73. Based on the amount of actual damages, interest up to February 4, 2026 should be \$8,928.29, not over \$21,000. However, the amount of accrued interest will increase as more time passes before entry of the default judgment.

Plaintiff's request for attorney's fees is also miscalculated. Plaintiff seeks \$5,999 in fees based on Appendix A1 of the Fresno Superior Court Local Rules. However, the requested amount is based on the contract price of \$62,470, not plaintiff's actual damages of \$35,014.73. Using the amount of actual damages, the attorney's fees would be only \$3,250.74, not \$5,999. Therefore, the court will not award the requested amount of fees.

In summary, the court intends to deny the motion for entry of default judgment without prejudice for multiple reasons, including failure to dismiss all defendants against whom a judgment is not sought, an improper request for excessive punitive damages, improperly calculated interest, and improperly calculated attorney's fees.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS on 7/29/2026.
(Judge's initials) (Date)

(37)

Tentative Ruling

Re: **O'Neil v. Warren**
Superior Court Case No. 22CECG00003

Hearing Date: August 4, 2026 (Dept. 503)

Motion: By Plaintiffs to Set Aside February 10, 2026 Order

Tentative Ruling:

To take the matter off calendar. (Code Civ. Proc., § 581.)

Explanation:

Plaintiffs seek an order setting aside the court's February 10, 2026 order. On February 10, 2026 the court issued a minute order taking plaintiffs' motion to cancel a deed off calendar. Notably, the February 10, 2026 order was not a dismissal of the matter.

In fact the entire action was dismissed, without prejudice, on January 29, 2026 when the parties failed to appear following the issuance of an Order to Show Cause on September 17, 2025. As this matter has been dismissed and plaintiffs have not sought or obtained an order setting aside the dismissal on January 29, 2026, the court lacks jurisdiction to hear this motion. Additionally, plaintiffs do not address their failure to appear at the Order to Show Cause hearing heard January 29, 2026.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS **on** 7/31/2026.
(Judge's initials) (Date)